

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Bleiberg	Team: Team # 6	CCRB Case #: 200614654	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 10/28/2006 12:40 AM	Location of Incident: 115 East Mosholu Parkway North	Precinct: 52	18 Mo. SOL 4/28/2008	EO SOL 4/28/2008	
Date/Time CV Reported Mon, 10/30/2006 12:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/02/2006 1:52 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Maurice Harrington	06286	934992	052 PCT
2. POM Joel Medina	30430	935297	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Joel Medina	Force: PO Joel Medina used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Maurice Harrington	Force: PO Maurice Harrington used physical force against § 87(2)(b) [REDACTED]	[REDACTED]

Synopsis

§ 87(2)(b) filed her complaint with the IAB on October 30 2006, via telephone. The CCRB received the complaint on November 2, 2006 via IAB log number 06-36668. § 87(2)(b)'s son, § 87(2)(b) relayed this complaint to her. § 87(2)(b) was in police custody at the time of § 87(2)(b)'s complaint. § 87(2)(b) did not witness the incident. The CCRB spoke to § 87(2)(b) on November 13, 2006, and he gave a more detailed account of the incident.

During the early hours of October 28, 2006, § 87(2)(b) had gotten into a fight with his girlfriend, § 87(2)(b) at her house in the Bronx. § 87(2)(b) ran out of the house half-naked and into a gentleman's car. § 87(2)(b) ran to this man's car and punched one of its windows to get her out. A police car a block behind the incident stopped at the scene. PO Maurice Harrington and PO Joel Medina, identified by name, got out of the vehicle. One of the officers yelled to § 87(2)(b) to get on the ground. As he lay on the ground, PO Harrington kicked § 87(2)(b) in the face and his body roughly three times. § 87(2)(b) received bruises and bumps on his body from the attack, as well as a dislocated jaw. § 87(2)(b) was then dragged 10-12 feet to a police vehicle. PO Harrington dragged § 87(2)(b) by the back of his arms, and PO Medina dragged him by his feet.

In addition to the CCRB calling § 87(2)(b) five times and sending him two letters, he missed his scheduled November 21, 2006 interview. § 87(2)(b) had scheduled the interview on November 13, 2006, the only time in which the CCRB was able to speak to him. On November 27, 2006, the CCRB called § 87(2)(b) and left him a message stating that if he did not call the CCRB by the morning of December 1, 2006, the case would be truncated. § 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: